

Case facts

Car owner (O) wants to get his car washed in a car wash operated by W. O passes a sign in front of the car wash that was already there during his last three washes. The sign is clearly readable and states:

“We are not liable for damage to the paintwork caused by the customer's failure to properly operate the car wash.”

O does not pay attention to the sign. However, he pays the price and goes through with the car wash.

Question: Did W use effective standard business terms?

Note: Assume that the content control is opened